(Sec. 10, 70 Stat. 506; 33 U. S. C. 466i. Interprets or applies sec. 6, 70 Stat. 502; 33 U. S. C. 466e)

Dated: April 10, 1957.

[SEAL] L. E. BURNEY,
Surgeon General.

Approved: April 22, 1957.

M. B. Folsom,
Secretary.

[F. R. Doc. 57-3382; Filed, Apr. 25, 1957; 8:49 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 1411]

[439566]

OREGON

REVOKING EXECUTIVE ORDER NO. 2233 OF AUGUST 6, 1915, WHICH WITHDREW PUBLIC LANDS FOR USE OF THE WAR DEPARTMENT FOR MILITARY PURPOSES

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Executive Order No. 2233 of August 6, 1915, which withdrew the following-described public lands in Oregon for use of the War Department for military purposes, is hereby revoked:

WILLAMETTE MERIDIAN

T. 26 S., R. 14 W.,
Sec. 3, lot 4.

The area described contains 32.06 acres.

2. The land is located in the south shore of the entrance to Coos Bay, at Coos Head, in Coos County, Oregon. The tract has only negligible crop value, except for small home vegetable and flower gardens. It is only accessible by ocean beach. The land is valuable for recreational purposes.

3. No application for the lands may be allowed under the homestead, desert-land, small tract, or any other nonmineral public-land law unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon the consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

4. Subject to any valid existing rights and the requirements of applicable law, the lands are hereby opened to filing of applications, selections, and locations in accordance with the following:

a. Applications and selections under the nonmineral public-land laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications and selections will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having prior existing valid settlement rights, preference rights conferred by existing laws, or equitable claims subject to allowance and conformation will be adjudicated on the facts presented in support of each claim or right. All applications presented by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(2) All valid applications under the Homestead, Desert Land, and Small Tract Laws by qualified veterans of World War II or of the Korean Conflict, and by others entitled to preference rights under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284 as amended), presented prior to 10:00 a. m. on May 28, 1957, will be considered as simultaneously filed at that hour. Rights under such preference right applications filed after that hour and before 10:00 a. m. on August 27, 1957, will be governed by the time of filing.

(3) All valid applications and selections under the non-mineral public-land laws, other than those coming under paragraphs (1) and (2) above, presented prior to 10:00 a. m. on August 27, 1957, will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

b. The lands will be open to applications and offers under the mineral-leasing laws, and to location under the United States mining laws beginning at 10:00 a. m. on August 27, 1957.

5. Persons claiming veterans preference rights must enclose with their applications proper evidence of military or naval service, preferably a complete photostatic copy of the certificate of honorable discharge. Persons claiming preference rights based upon valid settlement, statutory preference, or equitable claims must enclose properly corroborated statements in support of their claims. Detailed rules and regulations governing applications which may be filed pursuant to this notice can be found in Title 43 of the Code of Federal Regulations.

Inquiries concerning the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Portland, Oregon.

HATFIELD CHILSON,
Acting Secretary of the Interior.

APRIL 22, 1957.

[F. R. Doc. 57-3370; Filed, Apr. 25, 1957; 8:46 a. m.]

[Public Land Order 1143]

[Anchorage 026092]

ALASKA

RESERVING LANDS FOR USE OF FOREST SERVICE AS ADDITIONS TO KETCHIKAN AND JUNEAU ADMINISTRATIVE SITES; CORRECTION

APRIL 22, 1957.

In Federal Register Document 55-3737, appearing as Public Land Order No. 1143 at page 3151 of the issue for Tuesday, May 10, 1955, the first line of the land description of the Ketchikan Marine Station should read as follows: "Beginning at Corner No. 4 M. C., U. S. Survey 1079 * * *".

E. J. THOMAS,
Associate Director.

[F. R. Doc. 57-3369; Filed, Apr. 25, 1957; 8:45 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF AGRICULTURE

Agricultural Research Service

[7 CFR Part 301]

PINK BOLLWORM

DOMESTIC QUARANTINE NOTICE

Notice is hereby given under section 4 of the Administrative Procedure Act (5 U. S. C. 1003) that the Administrator of the Agricultural Research Service, pursuant to sections 8 and 9 of the Plant Quarantine Act of 1912, as amended (7 U. S. C. 161, 162), and section 3 of the Insect Pest Act of 1905 (7 U. S. C. 143), is considering amending notice of quarantine No. 52 relating to the pink bollworm and the regulations supplemental to said quarantine (7 CFR 301.52, 301.52–1 et seq.; 21 F. R. 3737) to read as follows:

QUARANTINE

Sec.
301.52 Notice of quarantine.

REGULATIONS

301.52–1 Definitions.
301.52–2 Designation of regulated area.
301.52–3 Regulated articles.
301.52–4 Conditions governing movement of certain regulated articles.
301.52–5 Conditions governing the issuance of certificates and limited permits.
301.52–6 Assembly of articles for inspection.
301.52–7 Cancellation of certificates or limited permits.
301.52–8 Inspection and disposition.
301.52–9 Shipments for scientific purposes.
301.52–10 Nonliability of Department.

QUARANTINE

§ 301.52 *Notice of quarantine.* Under the authority conferred by section 8 of the Plant Quarantine Act of August 20, 1912, as amended (7 U. S. C. 161), and